



Procedure No: EXP202212218 (PS/00056/2023)

RESOLUTION FOR RECTIFICATION OF ERRORS

By means of this resolution, the rectification of the resolution of procedure PS/00056/2023, dated 01/09/23, instructed against Mr. A.A.A., with NIF ***NIF.1, holder of the website <https://www.pokebank.es>, is carried out.

FACTS

Unique: From the examination of the resolution of procedure PS/00056/2023, dated 01/09/23, the existence of the arithmetic error described below is evident:

In the section "FOURTH" of the Resolution, the following is indicated:

"FOURTH: That the total sanction to be imposed amounts to 4,000 euros (four thousand euros), but since, on 30/06/23, the respondent proceeded to pay 1,200 euros (one thousand two hundred euros), the sanction that remains to be paid amounts to 3,800 euros (three thousand eight hundred euros)."

The material error occurred when the mathematical operation was performed by subtracting the 1,200 euros that had already been paid from the 4,000 euros, resulting in 2,800 euros instead of the 3,800 euros indicated in the resolution.

LEGAL GROUNDS

Article 109.2 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), empowers Public Administrations to rectify at any time, either ex officio or at the request of interested parties, material, factual, or arithmetic errors existing in their acts. Consequently, it is appropriate to rectify the error described in the "Facts" section.

Having seen the cited provisions and others of general application

AGREES:

FIRST: TO RECTIFY the error detected in the aforementioned resolution PS/00056/2023, dated 01/09/23, so that in the section "FOURTH" of the Resolution, where it says "3,800 euros (three thousand eight hundred euros)", it must say "2,800 euros (two thousand eight hundred euros)."

SECOND: TO NOTIFY this resolution to Mr. A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection at C/ Jorge Juan, 6, www.aepd.es, 28001 – Madrid, within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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